ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	69th Commission Meeting
DATE:	01 March 2022
TIME:	2:00 PM
VENUE:	Virtual (http://meet.google.com/bsq-kxoy-bmc)

#	AGENDA	DECISIONS
1	Update on roll out of ADS– ADMD & ICT, SS	The ADMD presented an update on activities vis-à-vis ADS roll out. The virtual ToT of ADAs was carried out from 14-17 February 2022 where 160 out of 213 attended the training. Some of the feedback received from the participants were: • ***HoA (schedule I covered persons) training:*** The participants requested the ACC to sensitize the HoAs on the enhanced ADS citing their challenges vis-a-vis active participation / support of their HoA in attending sessions conducted by the ADAs. To this, the division, upon highlighting the limited timeline for conducting separate sensitization for over 200 plus HoAs by ACC, requested the ADAs to include their respective HoA in the sensitization sessions by the ADAs for their agency specific covered persons. The division, as indicated to the ADAs during the ToT, recommended sending letters to the HoAs notifying them to provide necessary support to the ADAs in addition to attending the sensitization session by their agency ADA. The Commission endorsed the recommendation of the division to send out the letters. • ***Budget support for training of covered persons:*** Some participants of the ToT requested ACC to provide budget in conducting sensitization of enhanced ADS by the ADAs. While definitive assurance by the division wasn't given to the ToT participants, the proposal was being put to the Commission for strategic direction. The meeting discussed the non-availability of specific budget for such activities in ACC and recommended the division to inform the ADAs to make necessary arrangements from within their agency budget for this year and to plan and submit to their respective agencies, budget requirements from next year under relevant activity, viz. OIP indicators.

		• ***Inclusion of additional employees under covered persons:*** The participants suggested inclusion of some additional employees, viz. teachers, bill collectors, thromde tshogpas, etc. in the covered persons list and also sought clarification on the criterion for becoming a covered person. While attention was drawn to the ADR-2017 to understand the criterion for becoming a covered person, the division advised the ADAs to assess the vulnerabilities of the roles undertaken by their agency employees and notify ACC for inclusion of those additional employees too as covered persons, should the ADAs find their roles vulnerable to corruption issues. • ***Clarity on 15 days timeline for re-filing AD:*** Some participants sought clarification on whether to consider the refiled AD by the declarents, upon return by their agency ADA, late or on-time, if the refiling is beyond the actual declaration period. While the participants were informed that if the initial filing was done within the declaration period, the refiled AD won't be considered late provided the resubmission is made within 15 days after being returned for resubmit. Since the current ADR-2017 is silent on this, the division also informed that better clarity on this issue will be brought in the revised ADR-2017. • ***Administrative action by RCSC (late & non declaration):*** Concerns were raised on the lack of administrative actions taken by RCSC on late and non-declarants. While the division acknowledged the concerns, the participants were informed that ACC will initiate a dialogue with RCSC and other relevant agencies, at a convenient time to enhance the accountability vis-a-vis such lapses by the declarents. The commission recommended ADMD to consult the Prevention division, currently working on the assignment of reviewing the MI, to explore inclusion of relevant indicators towards enhancing performance. • ***Clarity on AD by employees on deputation:*** While the division proposed for AD filing, by the employees on deputation, to be done at the parent agency, the meeting highlighted the appropriateness of AD being filed at the current working agency in addition to management of information by the ADA, especially if the deputation period is quite long. Therefore, the Commission recommended the ADMD to provide appropriate direction to the ADAs upon assessing the pros and cons of these two arrangements. • ***Motivation / support to ADAs:*** As indicated in past interactive sessions with the ADAs, this time too, the ADAs mentioned the need for some motivational schemes for them to carry out the role of ADA, which is an additional responsibility on top of their agency specific

		roles /assignments. Suggestions were made on providing some sort of certificate from ACC,viz. "Integrity Advocate". While ADMD acknowledged and thanked the ADAs for their hard work and continued support provided to the ACC in administering and managing the AD of schedule II covered persons in their respective agency, the participants were informed that their proposal, in addition to some other feasible motivational schemes, worked out by ADMD under their strategic roadmap, will be recommended to the commission for necessary action. The commission, while acknowledging the recommendation, cautioned the ADMD to conduct proper assessment of such schemes to ensure reward is based on hard work and dedication so as to maintain the value of such certificates or other schemes. The Division plans to conduct ToT to the remaining 53 ADAs from 8-9 March 2022, pilot test of the system within ACC on 10th March and proposed to launch the system on 4th April 2022. Other direction provided by the Commission were: • Send out notifications on the revised timeline for AD filing as soon as possible. • Conduct pilot test of the ADS with ACC employees before 10th March, if possible.
2.	Seek direction on providing audit clearance- CMD, DoPS	The Yargay Company requested the ACC to facilitate providing audit clearance by the RAA. Towards this, based on the assessment made, the Commission decided to regret the request and the division to accordingly inform the company.
3.	Seek endorsement on APT 2022-2023- PPS, SS	The PPS presented the revised APT 2022-23 after input from management on 18/02/2022. Specific revisions were: - Increased the target of cases investigated to '*40 or more*' based on the increased manpower; - Boarded the scope of SI *'Actional intel projects conducted'* to *'Intel projects conducted'* to account for projects that does not necessarily result for investigation; - Revised and defined the targets of SI *'Grievance related to Evidence management received'* & *'HR audit conducted';* and - Revised the SI *'Proportion of professional staff availing minimum learning opportunities of 16 hrs. or more'* to '*Proportion of professional and support staff availing minimum learning opportunities of 16 hrs. or more'.* The Commission endorsed the changes in the APT 2022-23 and directed PPS to explore on including the targets set in the APT in annual report to show the focus of the agency.
4.	Deliberate on policy direction on management of Conflict of Interest	The Commission noted that, while the Commission shall make decision on complaints, there may come a situation when all the members of Commission may have conflict. Not only that, the

		nature of the complaints may be such that the institution will be perceived to have conflict. Thus, in order to efficiently provide decision, the Commission directed Legal Division to make assessment and come up with a policy on management of Conflicts of Interest in these two situations.
5.	Any others: - Update on proposal of BOC to join IPACS	The Commission directed PPS to follow up on the proposal sent to Bhutan Olympic Committee to join IPACS. Further, directed DoPE to explore on interventions to curb corruption in sports.
	- Expediate seeking assistance from CPIB	Directed PPS to send letter to CPIB on seeking technical assistance. Further, the need to route the request through embassy was directed to be explored to expediate the process.
	- The staff list for Regional Offices	The Commission endorsed the final name list of staff to be placed at the three regional offices.
	- Follow up on meeting with Director, Office of the Prime Minister	The Commission directed PPS to send a letter to the Director and share the Roadmap, information on budget detail and staff list for reference and necessary action.
	- Versions of Roadmap	The Commission directed PPS to maintain two versions of Roadmap. The One to be shared with external partners to have less detail especially on TSD and include disclaimer such as *Work in Progress-Not for Circulation*. The other detailed one for internal consumption.
	- Update on office space of regional Offices	The Head of SS updated that as per the direction of Commission, the Phuntsholing transit camp has been surrendered. However, the office for the engineer will be surrendered after April 2022. The initial identified transit camp at Bumthang could not be secured because the tenant has extended to stay for another three months. Thus, the SS is searching for another space. As for the office space at Trashigang, the manager advised to officially communicate with the CEO with regard to renting of the office. Towards this, the Commission directed to write to CEO of Bhutan Telecom and sent the letter urgently. Regarding the transit camp, a house near the identified office space has been secured. Since, the office space at Bumthang and Transit camp at Tashigang have been secured, the commission endorsed the rental charge (Nu 10,000/- per month for Bumthang office space and Nu 11,000/-per month for Trashigang Transit camp) respectively form March 2022. With regard to furnishing of office space at Bumthang and Trashigang, the Head of SS have already requested the Woodcraft Center for the furniture. Additionally, the security company that

		the head office avails services informed that they provide their service in 19 dzongkhags and have agreed to provide personnel upon one-month prior notice.
	- Downgrading the office lease line during lockdown	The Head of SS apprised Commission that during the lockdown, the ICTS has been communicating with Bhutan Telecom to downgrade the office bandwidth to 10 mbps as compared to the usual 64mbps, which would have incurred monthly cost of Nu. 84,906 in order to rationalize the recurrent cost.

Commissioner **Commissioner** **Chairperson**